

Micron Clay Megafab (White Pine Commerce Park, Clay, Onondaga County, NY) — Sourced Factual Record

Compiled 2026-09-28 by deep-research subagent. Purpose: factual backbone for an opinion column on how the Micron deal was negotiated. Confidence flags: **index** = read via web-index search results/page fetches (not live-verified); **verified live** = read in the real research browser. All sources below are **index** unless noted. All URLs copied verbatim from tool output.

Summary

Announced Oct 4, 2022, Micron's up-to-\$100-billion, four-fab semiconductor campus at White Pine Commerce Park in Clay, NY, was secured with a layered incentive package: up to **\$5.5B** in NY State Green CHIPS Excelsior tax credits (20 years), up to **\$6.165B** in federal CHIPS Act direct funding (finalized Dec 10, 2024), a **49-year OCIDA PILOT** (Micron pays \$84.5M over 49 years; assessed tax savings >\$283.8M), **140 MW** of discounted NYPA ReCharge NY power plus 404 MW market-procured power, and hundreds of millions in public road/water/sewer spending. Key terms were pre-negotiated in a **September 2022 "Term Sheet"** (Micron, ESD, Onondaga County, OCIDA) *before* the public announcement, and the county signed **NDAs with three prospective tenants** while courting the deal. The county stonewalled a FOIL request for the draft environmental impact statement (DEIS) in 2025, drawing a public rebuke from the Syracuse Post-Standard editorial board, which called the timetable "designed to limit public participation." There is **no formal community benefits agreement** with the community — the "CBA equivalent" is a state-company framework MOU behind a \$500M fund (Micron ≥\$250M, state \$100M, rest from other partners, over 20 years), whose first grants (\$43.5M) were announced March 2026. Labor advocates (Urban Jobs Task Force, CWA) have explicitly said

enforceable hiring/benefits commitments are missing. Construction broke ground Jan 16, 2026; first chips now expected ~2030 (2–3 years later than first promised); residents' group Neighbors for a Better Micron filed two lawsuits in 2026 (environmental review challenge, Jan 2026; air/water permit challenge, July 31, 2026). Data centers are now arriving in the region under the same IDA playbook — Town of Clay passed a one-year data-center moratorium in June 2026; a statewide data-center moratorium bill was in play the same month.

1. THE INCENTIVE STACK

Incentive	Figure	Authorized by	What Micron promised / conditions
NY State Green n CHIP S Excel sior tax credi ts	Up to \$5.5B over 20 years, in two phase s	Em pir e Sta te De vel op me nt (ES D), un der Gre	Tied to: 9,000 new jobs, \$100B invest ment, Green CHIPS com munit y bene fits

Incentive	Figure	Authorized by	What Micro-promised / conditions
		enacted by the President signed by the President	package + sustainability standards (100% renewable energy, LEED Gold)
Federal CHIP S & Science Act direct	Up to \$6.165B (PMT signed April 25, 2024;	U.S. Dept. of Commerce,	Supports Micro-n's ~\$100B NY + ~\$25B

Incentive	Figure	Authorized by		What Micron promised / conditions
		Authorized by	Authorized by	
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Incentive	Figure	Authorized by	What Micron promised / conditions
			of concern"; stock-buyback restrictions
Federal CHIP S manufacturing tax credits (AMT C/Section 48D)	syracuse.com (Jan 2026) report ed refundable credits for the two Clay fabs boost ed from	U.S. Congress (Treasury)	Contingent on qualifying U.S. fab investment

Incentive	Figure	Authorized by	What Micro-entrepreneurs promised / conditions
	~\$12B to ~\$17B by a Trump-era budget bill; WSJR (Feb 2026) cited "\$20B in federal subsidies" overall		
OCID A 49-year PILOT	Micro-entrepreneurs pay \$84.5M over	On 10/1/2023, the Department of Agriculture announced a Competitive and Discretionary Grant program for Micro-entrepreneurs	First two fab

Incentive	Figure	Authorized by	What Micron promised / conditions
	49 years; estimated property-tax savings >\$283.8M; OCID A also abated state/local sales tax on construction; 820 acres transferred/sold for	Industry Development Opportunity	

Incentive	Figure	Authorized by	What Micro-promised / conditions
	\$30M (vote: Nov 19, 2024)		
OCIDA total abatement expense (2025 financials)	\$2.04B total abatement value for Micro (incl. \$1.76B mortg age recor ding tax exem ption + \$283.9M	OCIDA financial statement s (year ended Dec 31, 2025)	—

Incentive	Figure	Authorized by	What Micro promised / conditions
	PILOT); rail spur adds \$3.6M		
NYP A power	140 MW ReCharge NY low-cost power + 404 MW high-load-factor power procured on market et (approved	NY PA Board of Trustees	Job/investment commitments per ReCharge program; Micro's 140 MW is the largest single ReCh

Incentive	Figure	Authorized by	What Micron promised / conditions
			large NY allocation (of 910 MW program-wide) — lohud /USA Today Network, Sept 16, 2026
State infrastructure	\$200M for roads/infrastructure around	NY State (ESD/DOT)	Support the campus

Incentive	Figure	Authorized by	What Micro-promised / conditions
	deductible campus us (announced Oct 2022); NYSD OT now estimates \$350M + \$25M bridges for Route 31/I-81/Cicero improvements (syracuse.com, and		

Incentive	Figure	Authorized by	What Micro-promised / conditions
	June 2025)		
County infrastructure	\$5M facade grant; \$10M with Syracuse University for R&D at Center of Excellence; \$5M workforce sustainability grant	Onondag County / State	Micro-enterprises to pay industrial-plant costs via user fees — terms unresolved as of 2026

Incentive	Figure	Authorized by	What Micro-promised / conditions
	over 10 years; \$5M workforce attraction grant (announced Oct 2022). Water : \$100M+ in state budget for OCW A expansion (2025 budget t);		

Incentive	Figure	Authorized by	What Micro-promised / conditions
	\$549 M Oak Orchard sewer expansion approved by county legislature Dec 2025 (construction 2026– 2031; household sewer charges		

Incentive	Figure	Authorized by	What Micron promised / conditions
	could rise ~\$115 over 5 years) ; industrial waste water plant estimated ated \$1B (count y exec) to \$1.4–\$2.6B (consultants) — count y LDC to issue		

Incentive	Figure	Authorized by	What Micro-finance promised / conditions
	bonds , Micro-finance to pay via user agreement still being negotiated (2026)		
Community fund (see §3)	\$500M Green CHIPS Community Investment Fund over 20 years:	ESD-Micro-finance Community unit Investment Fund over 20 years:	Workforce development, education, community investment

Incentive	Figure	Authorized by	What Micron promised / conditions
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Aggregate figure (use with care): Capital & Main (Feb 2026) put total public subsidies at "**as much as \$25 billion**"; the Syracuse Post-Standard editorial board (spring 2025) said the project "depends on **\$20 billion in taxpayer subsidies**"; the Empire Center (Oct 2022) estimated state+local subsidies then disclosed at "**north of \$6 billion, or at least \$667,000 per job**" (at 9,000 jobs); Reinvent Albany (Apr 2026) calculated **\$736,000 per job** (\$6.4B ESD subsidy). **Disagreement flagged:** figures differ because authors include different subsidy layers (state credits only vs. + federal grants vs. + refundable AMIC credits vs. + local abatements + infrastructure). The column should name which stack it is using.

Sources: - Governor's office announcement, Oct 4, 2022 — <https://www.governor.ny.gov/news/hochul-schumer-mcmahon-announce-micron-coming-onondaga-county-micron-will-invest-unprecedented> -

NIST/Commerce award announcement, Dec 10, 2024 —

<https://www.nist.gov/news-events/news/2024/12/departments-commerce-awards-chips-incentives-micron-idaho-and-new-york> - OCIDA vote details (syracuse.com/CNYCentral via archynewsy), Nov 19, 2024 —

<https://www.archynewsy.com/micron-land-transfer-tax-breaks-ida-vote-details/> - OCIDA financial statements FY2025 —

<https://clayny.news/document/675/original> - NYPA allocations (~Mar 2023) —

<https://www.renewableenergyworld.com/energy-business/energy-finance/nypa-approves-hydropower-allocations-to-amazon-micron-others/> - Empire Center, Oct 2022 — <https://www.empirecenter.org/publications/a-fab-ulous-deal-for-new-york-state/> - Reinvent Albany data-center subsidy table, Apr 2026 — <https://reinventalbany.org/2026/04/ny-taxpayers-spend-77m-for-one-jp-morgan-data-center-job-by-far-largest-subsidy-per-job-in-history/> - Capital & Main / Fast Company, Feb 2026 —

<https://www.fastcompany.com/91495639/microns-100-billion-new-york-semiconductor-manufacturing-project-is-facing-local-pushback> - Oak Orchard \$549M (WSYR, Dec 30, 2025) —

<https://wsyr.iheart.com/content/2025-12-30-onondaga-co-approves-549m-sewer-expansion/> - Industrial wastewater plant (Water Tech Online, Feb 2026) —

<https://www.watertechonline.com/wastewater/news/55359396/onondaga-county-building-treatment-plant-for-micron-technology> - NYSDOT road estimates (syracuse.com, June 2025; forum summary with article quotes) — [https://www.aaroads.com/forum/index.php?](https://www.aaroads.com/forum/index.php?PHPSESSID=86m9fpg0c1qriulqdi35ces9b3&topic=1487.msg2991263%3Btopicseen)

[PHPSESSID=86m9fpg0c1qriulqdi35ces9b3&topic=1487.msg2991263%3Btopicseen](https://www.aaroads.com/forum/index.php?PHPSESSID=86m9fpg0c1qriulqdi35ces9b3&topic=1487.msg2991263%3Btopicseen) - TrendForce (Jan 16, 2026, summarizing syracuse.com) —

<https://www.trendforce.com/news/2026/01/16/news-u-s-commerce-secretary-lutnick-reportedly-to-attend-microns-100b-clay-fab-groundbreaking/>

2. APPROVAL TIMELINE AND PROCESS

- **2020–2022 (pre-announcement):** Onondaga County assembled the 1,200-acre White Pine Commerce Park and completed a generic environmental impact study; County Executive Ryan McMahon began

courting site selectors. The county signed **nondisclosure agreements with three possible tenants** and held meetings with Gov. Hochul and Sen. Schumer — "the deals hinged on state and federal funding." McMahon could not publicly reveal Micron's interest.

(syracuse.com/Post-Standard profile, ~Oct 2023; hosted PDF)

- **August 2022:** Hochul signs Green CHIPS legislation — the state incentive vehicle created for the deal. (Renewable Energy World, Mar 2023)
- **September 2022:** Micron, ESD, Onondaga County, and OCIDA sign the "**Key Terms and Conditions for Development of the Micron Green Manufacturing Memory Chip Fab Campus in Clay, New York**" (**Term Sheet**) — committing to 9,000+ jobs, federal prevailing wage for construction workers, the \$500M community investment fund, and sustainability terms. This happened **before** any public announcement. (Cited in Micron DEIS Appendix A–D, ongovod.com)
- **October 4, 2022:** Public announcement — Hochul, Schumer, McMahon, CEO Sanjay Mehrotra. A syracuse.com report (Oct 4, 2022) noted a bipartisan team had "worked for almost two years trying to lure Micron." Original plan: site prep in 2023, construction 2024, production "in the latter half of the decade" (Micron press release, Oct 2022).
- **Nov 7, 2022:** Town hall meeting (Clay) — McMahon/Micron gave additional details: 9,000 jobs at average pay of **\$108,000**; ~5,000 construction jobs/year average; 40,000–50,000 supply-chain jobs. (bsk.com town-hall summary)
- **2023:** SEQRA EAF Addendum (Sept 2023); SEQRA Final Scope of Work (Dec 14, 2023).
- **March 2024:** U.S. Army Corps of Engineers begins federal Environmental Impact Statement process (Notice of Intent); Micron proposes filling **~226 acres of federally regulated wetlands**. (The Register, Mar 4, 2024)
- **April 25, 2024:** CHIPS preliminary memorandum of terms (\$6.14B).
Dec 10, 2024: final \$6.165B award.
- **Nov 19, 2024:** OCIDA approves 820-acre land transfer (\$30M) and 49-year PILOT.

- **2025 (spring):** Onondaga County stonewalls FOIL request for the draft EIS — told reporter Glenn Coin (Post-Standard) he petitioned the wrong agency, it was too voluminous, then blew past FOIL deadlines, promising delivery in July *after* the planned June public release. County claimed "intra/interagency communication" exemption, contradicting the Court of Appeals and the Committee on Open Government. **Editorial board: "The county's tight timetable appears to be designed to limit public participation... The public deserves to be heard about a project that depends on \$20 billion in taxpayer subsidies."** (syracuse.com Editorial Board, spring 2025) — Reinvent Albany (May 2025) also cited: "Syracuse-area Onondaga County refuses to release a report from Micron on the planned chip fab's impact on the local environment and traffic."
- **2025 (summer):** DEIS comment-period fight — at release of the draft EIS (~20,000 pages with appendices), officials held to the 45-day federal minimum for public comment; a coalition of labor, environmental, and social-justice groups (SustainCNY, Urban Jobs Task Force, Citizen Action, CNY Solidarity, Neighbors of the Onondaga Nation, IUE-CWA, Jobs to Move America) held a press conference urging **120 days**, calling 45 days "grossly inadequate" for a document of that scale and warning of "massive pollution from forever chemicals like PFAS." (openpr.com) The public comment period closed **August 11, 2025.** (NOPL)
- **June 2025:** syracuse.com reports NYSDOT takes first step on road revamps (\$350M estimate).
- **Nov 2025:** Draft EIS released (~20,000 pages); **Final EIS** (Nov 2025) confirms delay: Fab 1 construction Q2 2026 → operational Q3 2030; Fab 2 → ops late 2033; full buildout construction done **2041**, full production **2045.** (constructionreviewonline, Nov 15, 2025)
- **Oct 16, 2025:** NY PSC approves 2-mile 345-kV underground transmission line (Clay substation → campus); Hochul: "moving quickly ahead with all due speed and deliberation." (Reuters; ENR)
- **Dec 2025:** State environmental permits approved; county legislature approves \$549M Oak Orchard sewer expansion. (ConstructConnect; WSYR)

- **Jan 14, 2026:** Clay Planning Board **unanimously approves** Micron site plan — two days before groundbreaking. **Jan 16, 2026:** groundbreaking ceremony (Mehrotra, Commerce Secretary Lutnick, Sen. Schumer). Tree clearing completed by Mar 31, 2026 (Indiana bat nesting deadline). (WSYR; trendforce) *Note: one WSYR item says the ceremony was Jan 7; the Jan 16 date is corroborated by the pre-event WSYR preview, trendforce, and Micron's announcement — Jan 16 is the supported date.*
- **Jan 2026:** Neighbors for a Better Micron files lawsuit challenging the environmental review (Micron moves to dismiss; oral arguments scheduled Aug 25, 2026). **July 31, 2026:** second lawsuit (Albany Supreme Court) seeks to void the DEC air permit and Oak Orchard water permit over PFAS/"forever chemical" wastewater discharges to the Oneida River and GHG emissions; DEC had found the project conflicts with NY climate targets but approved on national-security grounds. (TechSpot, Aug 2026, citing Times Union; lohud, Aug 7, 2026)

Sources: - NDA/Term Sheet items — [syracuse.com McMahon profile PDF](#) (img1.wsimg.com blob, ~Oct 2023); DEIS Appendix A–D — <https://ongoved.com/wp-content/uploads/2025/06/Micron-Draft-EIS-Appendices-A-D.pdf> - Town hall summary, Nov 7, 2022 — <https://www.bsk.com/uploads/11-07-22-Micron-and-Onondaga-County-Executive-Provide-Additional-Information-Regarding-Microns-Clay-Mega-Fabs-at-Town-Hall-Meeting-Semiconductor-IM.pdf> - Army Corps EIS notice (The Register, Mar 4, 2024) — https://www.theregister.com/2024/03/04/micron_fab_environmental_scrutiny/ - Editorial board "Release it now" (spring 2025) — img1.wsimg.com PDF - Lawsuit coverage (lohud, Aug 7, 2026) — <https://www.lohud.com/story/news/ny-news/2026/08/07/lawsuit-claims-microns-100b-project-poses-threat-to-ny-environment/91202884007/> - TechSpot (Aug 2026) — <https://www.techspot.com/news/113349-lawsuit-claims-micron-100-billion-new-york-chip.html> - Groundbreaking (WSYR, Jan 16, 2026) — <https://wsyr.iheart.com/content/2026-01-16-groundbreaking-ceremony-for-microns-100b-project-in-clay/>

3. COMMUNITY BENEFITS — WHAT WAS EXTRACTED

Bottom line: there is no formal community benefits agreement (CBA) with the community. Labor advocates say so explicitly. What exists instead is a government–company framework:

- **\$500M Green CHIPS Community Investment Fund** (over 20 years): Micron contributes "at least" **\$250M**, NYS **\$100M**, remaining \$150M "raised from local, statewide and national partners" — i.e., \$150M was not committed at signing. Four spending buckets: workforce development, education, community investments, housing. Governed by an **"Executed Community Investment Framework MOU"** between ESD and Micron (not a CBA with residents), guided by a Community Engagement Committee and a "Community Priorities Document" informed by 12,700+ regional voices. (ESD, <https://esd.ny.gov/micron-community-investment-commitments>; governor.ny.gov guidelines announcement, Dec 2024)
- **First grants announced ~March 27, 2026:** Micron awarded nearly **\$35M**; state **\$8.5M** — total **\$43.5M** — including \$30M toward the **\$150M Housing CNY Fund** and \$5.55M for six programs (housing, workforce, childcare, transportation, education). (governor.ny.gov; Insider Monkey, Apr 8, 2026)
- Binding vs. aspirational: the MOU is a state–company document; no public recourse mechanism for residents if targets are missed. Syracuse letter-writer (July 7, 2025): the DEIS is "light on measurable enforcement strategies or binding commitments." Urban Jobs Task Force's **Dick Kornbluth** (July 2026): "The whole point of a community benefits agreement is it actually creates accountability. **Anything short of that does not**" — labor advocates were still pressing Micron for hiring goals in 2026. Micron's workforce VP said hiring will take "a broad, New York state approach," not CNY-prioritized. (lohud/USA Today Network, July 22, 2026) Reviewer Dick Kornbluth (Oct 2026) adds that the Term Sheet's ESD "requirement" for Micron to establish hiring goals for disadvantaged and minority workers and businesses was answered with a Micron "good faith effort" commitment — the enforceability gap a CBA would close, and his reason for backing the

CNY United Coalition's CBA push.

- **Labor:** Construction covered by **project labor agreements** and federal prevailing wage (Sept 2022 Term Sheet; PLAs confirmed as part of the \$6.1B CHIPS deal, Bloomberg Law, Apr 2024); Micron agreed to labor-peace talks/neutrality discussions with the **CWA** under the CHIPS award and to registered apprenticeships. UA Local 81 (plumbers/pipefitters/welders) expects to double from 1,400 members via the Micron contract — up to 4,000 trades workers at peak construction, ~500 permanent jobs. (pressconnects, July 22, 2026) But **CWA** (Dec 2024) said the Commerce award was made "without enforceable labor and environmental standards or public reporting requirements" and that Micron was "falling short" of the Central New York **Good Jobs & Equitable Access Platform**. (speedmatters.org/CWA, Dec 11, 2024)
- **Environment (aspirational):** 100% renewable energy, LEED Gold, GHG targets and reporting; water conservation; compensatory wetland mitigation for 200+ acres filled; new wetlands to offset losses. **Binding gaps:** Micron declined to disclose its full chemical/PFAS inventory, calling it "proprietary" (Newshouse, May 2026, quoting ex-IBM facilities employee Paul Doody); the July 2026 lawsuit alleges the Oak Orchard water permit imposes only PFAS monitoring with "no substantive controls"; DEC found the project conflicts with state climate targets (see §2). **Reviewer-flagged (Dick Kornbluth, Oct 2026 — he recommends confirming with SustainCNY technical staff):** until the separate industrial wastewater plant is completed (county exec estimate ~\$1B; consultants \$1.4–2.6B — Water Tech Online), Micron's wastewater would be processed by the existing county Oak Orchard plant, which has no PFAS-removal capability; and, to his knowledge, neither OCIDA nor DEC has committed to baseline monitoring of waterways for contaminants or to regular post-operation discharge monitoring.
- **Water/energy scale:** up to **48 million gallons/day** at full buildout (2043), up from early ~20M gal/day estimates (syracuse.com, Apr 2025, via OCWA); OCWA (~36M gal/day today for 350,000 customers) plans to double capacity to 72M gal/day. First fab: ~6M gal/day

wastewater (county water agency docs, Jan 2025). 140 MW discounted NYPA power + 404 MW market power.

- **Traffic:** mitigation is public money — state \$200M pledged (2022); NYSDOT now estimates \$350M + \$25M bridges; \$68M new I-81 interchange in Cicero; diverging-diamond at I-81/Route 31; new Route 481 interchange; four-lane access road. No Micron repayment disclosed.
- **Housing/workforce:** \$150M Housing CNY Fund (\$30M Micron so far); \$15M Micron Cleanroom Simulation Lab at Onondaga Community College opened Oct 1, 2025 (\$5M each: Micron, county, state SUNY).

Sources: - ESD community commitments — <https://esd.ny.gov/micron-community-investment-commitments> - First grants, March 2026 — <https://www.governor.ny.gov/news/governor-hochul-announces-over-43-million-community-investment-funding-central-new-york-part> ; <https://www.insidermonkey.com/blog/micron-technology-mu-announces-a-huge-community-investment-in-central-new-york-1733356/> - CWA good-jobs critique, Dec 11, 2024 — <https://speedmatters.org/news/cwa-calls-micron-adopt-good-jobs-platform-amid-semiconductor-companys-61-billion> - Bloomberg Law PLA piece, Apr 2024 — <https://news.bloomberglaw.com/daily-labor-report/micron-to-broker-labor-peace-agreement-under-6-1-billion-deal> - lohud workforce piece, July 22, 2026 — <https://www.lohud.com/story/news/2026/07/22/microns-100b-project-promises-9k-jobs-how-its-already-impacting-ny/91012879007/> - pressconnects trades piece, July 22, 2026 — <https://www.pressconnects.com/story/news/2026/07/22/how-chips-act-is-bringing-thousands-of-high-paying-trades-jobs-to-upstate-ny/91004546007/> - Newshouse PFAS/chemical disclosure, May 2026 — <https://thenewshouse.com/off-campus/how-microns-chip-plants-could-affect-new-york-residents/> - OCC cleanroom lab, Oct 2025 — <http://business.dailytimesleader.com/dailytimesleader/article/marketminute-2025-10-1-central-new-york-unveils-15m-cleanroom-simulator-a-new-era-for-semiconductor-workforce-development>

4. CRITICISM AND OPPOSITION

- **Fiscal watchdogs.**
- **Empire Center** (Oct 2022, "A 'fab'-ulous deal for New York State?"): \$5.5B state credits + 49-year PILOT + county grants + \$200M roads = "north of \$6 billion, or at least \$667,000 per job"; noted the REMI benefit study was cited but not released; filed a FOIL request for it.
- **Reinvent Albany:** Nov 18, 2022 — "Just weeks after NY announced plans to give up to \$5.5 billion in subsidies to Micron... the company announced plans to reduce spending by 20% (Times Union)"; asked whether taxpayers should fund "huge speculative expansions by global corporations in highly cyclical industries"; cited labor economist Tim Bartik's finding that Excelsior-type credits affect job decisions only 2–25% of the time (Feb 2025 testimony); Apr 2026 — Micron fab at **\$736,000 per taxpayer dollar per job** (\$6.4B ESD subsidy). Also flagged IDA incentive misalignment: NY's 107 IDAs collected \$290M in deal fees 2018–2022 (80% of their operating revenue) — i.e., IDAs profit from giving away tax dollars. OCIDA's own 2025 financials show \$1.33M in agency fees from Micron in 2025 alone.
- **Good-government/secretcy.**
- County NDAs with three prospective tenants; Term Sheet signed before public announcement (\$2).
- Post-Standard editorial board (spring 2025): county's FOIL stonewalling on the DEIS; "tight timetable appears to be designed to limit public participation."
- NSCSD school-board presentation to OCIDA (May 27, 2026): PILOT payments reduce the tax levy under the tax cap (district "receives NO FUNDI[ng]"); DOT used eminent domain, taking properties off tax rolls; district seeks special legislation to exempt Micron PILOTs from the tax-cap calculation and 100% building aid for a decade. (onondaga.gov PDF)
- North Syracuse district separately (govtech, Sept 2026): Micron will pay the schools ~\$1.3M/year — "pennies on the dollar" — and the district must ask Micron for a \$10M voluntary donation toward an

\$18M STEM hub.

- **Environmental / EJ.**
- **Neighbors for a Better Micron** (Clay residents): two 2026 lawsuits (\$2); member Gracia Roulan: "we don't want this just bulldozed into our area" (Capital & Main/Fast Company, Feb 2026); 200+ acres of wetlands filled; 48M gal/day water; PFAS wastewater; thousands of tons of GHG; chemical list withheld as "proprietary."
- **CHIPS Communities United** (coalition of unions + community groups): Judith Barish — "Environmental review is one of the only levers that the public has to learn what the impact [of a project] might be"; advocates want subsidies conditioned on job delivery. (Capital & Main, Feb 2026)
- **Labor.** CWA: award lacked enforceable labor/environmental standards and public reporting; Micron falling short of the CNY Good Jobs & Equitable Access Platform (Dec 2024). Urban Jobs Task Force: no accountable CBA; pressing for hiring goals (July 2026). On the other side: building-trades unions are enthusiastic (PLA, 4,000 peak trades jobs) — a split between trades (construction jobs) and community-labor advocates (permanent-job equity).
- **National press:** Capital & Main/Fast Company (Feb 2026): "may receive as much as \$25 billion in public subsidies... Community members want enforcement measures to ensure the company follows through on promised environmental safeguards and its pledge to create 9,000 jobs." Bloomberg Law (Apr 2024) on labor conditions in the CHIPS deal. Reuters (Oct 2025) on the power-line approval. USA Today Network/lohud (2026) on workforce and power-secrecy angles.
- **Times Union:** Nov 2022 reporting (cited by Reinvent Albany) that Micron would cut spending 20% weeks after the subsidy announcement; Aug 2026 — Micron told the Times Union it doesn't comment on active litigation but the project underwent "extensive environmental review." (via TechSpot, Aug 2026)
- **Syracuse.com/Post-Standard:** the NDA profile (~Oct 2023), the "release the DEIS" editorial (spring 2025), June 2025 roads reporting, July 2025 letters ("no measurable enforcement strategies or binding commitments"; "40% of the first phase... subsidized by taxpayers"),

Jan 2026 site-plan approval coverage, and ongoing scrutiny of sewer/water costs and the "\$549M sewage project likely to hike your rate."

Sources: as listed above plus: - Reinvent Albany Nov 2022 —

<http://reinventalbany.org/2022/11/subsidy-sheet-micron-reduces-spending-weeks-after-announcing-ny-plans/> - Reinvent Albany IDA report citation

(Apr 2024) via Mar 2025 item — <http://reinventalbany.org/2025/03/genesee-ida-pocketing-50-million-plus-from-perverse-3-9-million-per-job-subsidy-deal/> - NSCSD presentation —

https://onondaga.gov/legislature/wp-content/uploads/sites/201/2026/06/NSCSD_Presentation-OCIDA-May-27-2026-1.pdf - North Syracuse STEM hub (govtech, Sept 2026) — <https://www.govtech.com/education/k-12/north-syracuse-n-y-plans-to-add-stem-hub-to-high-school> - Your Letters (syracuse.com, July 7, 2025) — img1.wsimg.com PDF

5. CURRENT STATUS (as of September 2026)

- **Construction:** Groundbreaking Jan 16, 2026; tree clearing by Mar 31, 2026 (Indiana bat); first concrete poured **July 2026**, "more than a quarter ahead of schedule" (Micron, via Futurum/equityswarm, July 2026). By July 2026: 300+ acres cleared, 500,000 cubic yards of cement poured, **\$661M spent since Nov 2025** (\$232M construction since Jan 2026), **\$2.3B in contracts committed** (per court filings — lohud, July 22, 2026). ~\$675M directed to NY-based contractors/suppliers (Micron, July 2026). EPC: **Bechtel** (selected June 2026); design: Jacobs; preconstruction: Gilbane. County Executive McMahon (Sept 15, 2026 budget address): "1st phase of Micron's construction has begun"; **3,000–4,000 workers on site next year.**
- **Timeline shifts:** First fab operation moved from original ~2028 plan → **Q3 2030** (Nov 2025 Final EIS); Fab 2 → late 2033; four-fab construction complete 2041; full production 2045. McMahon blamed labor shortages and longer construction cycles (Environment+Energy Leader, Sept 2026). *Flag:* one outlet (BigGo Finance, July 9, 2026)

reported DRAM production beginning **2029** — conflicts with the FEIS-based Q3 2030; the FEIS figure is more authoritative.

- **Investment scale-ups:** June 2025 — Micron/Trump Commerce announced expanded **\$200B** US commitment (up from ~\$150B manufacturing + \$50B R&D framing), incl. up to two additional NY fabs, +\$275M CHIPS PMT for Virginia, 90,000 jobs; the Trump administration said it "**streamlined the Biden Administration's onerous policy requirements**" for the awards — i.e., Micron's federal conditions were lightened in renegotiation (iconnect007/einnews press release, June 2025; SRN/Reuters, June 4, 2025 on Lutnick renegotiating "overly generous" grants). July 9, 2026 — Micron raised the US commitment again to **>\$250B through 2035**; \$500M strategic financing + 10-year wafer supply deal with GlobalWafers. The \$6.165B CHIPS award itself appears to have survived.
- **Jobs to date vs. promised:** Promise = 9,000 direct Micron jobs at full buildout (~2045), ~50,000 total NY jobs. No public figure found for permanent Micron employees hired to date (Sept 2026) — Micron and officials cite construction spend and contractor dollars instead. **Could not verify.**
- **Controversies (2026):** (1) Neighbors for a Better Micron's two lawsuits (Jan 2026 environmental-review challenge; July 31, 2026 air/water permit challenge over PFAS discharges to the Oneida River and GHG) — both pending; (2) \$549M Oak Orchard sewer expansion approved Dec 2025 with rate-hike concerns (~\$115/household over 5 years); (3) industrial wastewater plant cost (\$1B vs. \$1.4–\$2.6B estimates) with Micron's user agreement still unfinalized — the county borrows, Micron pays later; (4) single-source claim that Micron is shifting ~\$1.2B in CHIPS funds from NY to Idaho (constructionreviewonline, Nov 2025) — unverified, but Idaho's second fab may come online before NY's first (panabee, June 2025).
- **Micron's current public line:** project is ahead of schedule on construction; >\$250B US commitment; 9,000 NY jobs + 40,000+ ecosystem jobs; 40% of DRAM made in the US; "committed to being a great member of the community and a responsible environmental

steward" (spokesperson Anna Newby, Feb 2026); environmental review was "thorough"; declines comment on active litigation.

Sources: - Construction progress (lohud, July 22, 2026) — <https://www.lohud.com/story/news/2026/07/22/microns-100b-project-promises-9k-jobs-how-its-already-impacting-ny/91012879007/> - \$250B announcement (Futurum Group, July 2026) — <https://futurumgroup.com/insights/microns-250b-us-investment-finds-its-edge-on-koreas-memory-juggernaut/> - Timeline shift (Environment+Energy Leader, Sept 2026) — <https://environmentenergyleader.com/stories/micron-delay-shows-why-lenders-underwrite-the-schedule,138817> - Trump renegotiation (SRN/Reuters, June 4, 2025) — <https://srnnews.com/trump-administration-renegotiating-overly-generous-biden-chips-act-grants/> - \$200B announcement + streamlined requirements (iconnect007, June 2025) — <https://iconnect007.com/article/145758/president-trump-secures-200b-investment-from-micron-technology-for-memory-chip-manufacturing-in-the-united-states/145755/ein> - McMahon Sept 15, 2026 budget address (CitizenPortal AI summary) — <https://citizenportal.ai/articles/9989480/new-york/onondaga-county/mcmahon-highlights-micron-construction-as-engine-for-regional-growth>

The 10 most citable "community gave away its leverage" facts

1. **\$5.5B state tax credits / 9,000 jobs = ~\$611,000 per promised job** — and Reinvent Albany's math puts the ESD subsidy at **\$736,000 per job** (\$6.4B) (Apr 2026; Empire Center's 2022 version: ≥\$667,000/job).
Sources: governor.ny.gov, Oct 4, 2022; reinventalbany.org, Apr 2026.
2. **Term Sheet signed September 2022 — before the October 4, 2022 public announcement** — by Micron, ESD, Onondaga County, and OCIDA, pre-committing the job, wage, community-fund, and sustainability terms. (DEIS Appendix A–D, ongoved.com)
3. **County signed NDAs with three prospective White Pine tenants** while negotiating with Hochul and Schumer; the public learned the details only at the announcement. (syracuse.com/Post-Standard)

McMahon profile, ~Oct 2023)

4. **49-year PILOT: Micron pays \$84.5M over 49 years; tax savings >\$283.8M** — and the host school district says PILOT payments must *reduce the tax levy* under the tax cap rather than fund schools ("receives NO FUNDI[ng]"). (OCIDA vote, Nov 19, 2024; NSCSD presentation to OCIDA, May 27, 2026)
5. **The county stonewalled FOIL release of the draft EIS** in 2025; the Post-Standard editorial board said the "tight timetable appears to be designed to limit public participation" on "a project that depends on \$20 billion in taxpayer subsidies." (syracuse.com editorial, spring 2025)
6. **No binding community benefits agreement exists.** Urban Jobs Task Force's Dick Kornbluth (July 2026): "The whole point of a community benefits agreement is it actually creates accountability. **Anything short of that does not.**" The \$500M "community fund" is a state-company MOU: Micron $\geq$ \$250M, NYS \$100M, **\$150M uncommitted** at signing, spread over 20 years; first grants (\$43.5M) only in March 2026. (lohud, July 22, 2026; esd.ny.gov)
7. **The public pays for the infrastructure:** \$350M+ in road work (NYSDOT estimate, June 2025), \$549M sewer expansion with household rate hikes (~\$115 over 5 years, Dec 2025), and a \$1B+ industrial wastewater plant the county will bond for while Micron's user agreement is **still being negotiated** (2026). (syracuse.com; WSyr; Water Tech Online)
8. **CWA: the \$6.165B CHIPS award was made "without enforceable labor and environmental standards or public reporting requirements"** (Dec 2024) — and the Trump administration later **"streamlined"** (lightened) the award's policy requirements while keeping the money (June 2025). (speedmatters.org/CWA; iconnect007)
9. **Weeks after the \$5.5B subsidy announcement, Micron cut spending 20%** (Nov 2022) — Reinvent Albany: "taxpayers should not be paying for huge speculative expansions by global corporations in highly cyclical industries." (reinventalbany.org, Nov 18, 2022, citing Times Union)
10. **The playbook is already being reused: a Lysander data center**

(Onondaga County) is in early planning; Town of Clay passed a **one-year data-center moratorium** (June 2026) while a statewide moratorium bill was in play; NYPA **won't disclose the value of power discounts** it gives data centers (lohud, Sept 16, 2026); and the IDA-fee model persists — Genesee County's IDA stands to pocket **\$47–79M in fees** on a data-center deal costing \$3.9M per job (Reinvent Albany, Mar 2025). (blackridgeresearch.com; WSTM via briefs; lohud; reinventalbany.org)

Action items: what the record supports doing next

The point of this record is not only critique — it is leverage for what comes next, for Micron and for the data centers now arriving in the region:

1. **Win a binding Community Benefits Agreement.** The Term Sheet's ESD "requirement" for Micron hiring goals for disadvantaged and minority workers and businesses was answered with a "good faith effort" commitment — no enforcement, no public recourse. Support the CNY United Coalition's CBA push to convert aspirational language into enforceable commitments: binding hiring and contracting targets, public reporting, and community recourse if targets are missed. As Urban Jobs Task Force's Dick Kornbluth puts it: "The whole point of a community benefits agreement is it actually creates accountability. Anything short of that does not."
2. **Lock in environmental monitoring now.** Demand OCIDA and DEC commit to baseline contaminant monitoring of waterways before operations begin, and to regular discharge monitoring after — not monitoring-only permits with "no substantive controls." Independent PFAS testing along the Oneida River to Lake Ontario pathway.
3. **End the chemical-secrecy shield.** Require full disclosure of the PFAS/chemical inventory used in manufacturing. "Proprietary" cannot be the answer when the discharge goes into public waterways.
4. **Fix the process for the next project.** 120-day minimum DEIS comment periods for megaprojects (the 2025 coalition petition asked

for 120 days; the public got 45). FOIL compliance before approvals, not after. No NDAs on public incentive negotiations.

5. **Apply the lesson to data centers.** The moratorium buys time; published terms capture value. Local officials should adopt the model negotiating framework and term sheet *before* the next developer arrives — the same playbook, with the leverage intact this time.

Could not verify / open questions

- **Permanent Micron jobs created to date (Sept 2026):** no public figure found; officials cite construction spend instead. Do not assert a number.
- **Excelsior credit recapture/clawback mechanics:** described as "performance-based" but the schedule, job-count tests, and recapture formula are not public in sources found.
- **Whether any Town of Clay rezoning was required:** the county pre-assembled White Pine Commerce Park; no rezoning fight surfaced in sources. The operative approvals were PILOT, SEQRA/site plan, and state/federal permits.
- **The \$13M natural-gas pipeline claim** (Marcellus Drilling News, Sept 2026, partisan blog): unverified — treat as allegation, not fact.
- **\$1.2B CHIPS reallocation NY→Idaho** (constructionreviewonline, Nov 2025): single lower-authority source; directionally consistent with Idaho fabs coming online first, but unconfirmed.
- **"Micron has paid Onondaga County nearly \$15M in fees"** (syracuse.com headline snippet): headline-level only; OCIDA financials confirm \$1.33M in agency fees from Micron in 2025, but the cumulative \$15M figure was not verified.
- **Groundbreaking date variant:** one WSYR item says Jan 7, 2026; preponderance (WSYR preview, trendforce, Micron) says Jan 16, 2026. Used Jan 16.

Sources

All URLs above were copied verbatim from search-tool output (index reads, 2026-09-28; none verified live in the research browser). Working notes per topic are in notes/: `source-basics.md`, `source-benefits-labor.md`, `source-secrecy-current.md`, `source-power-litigation.md`.

Key primary/official sources: governor.ny.gov (Oct 4, 2022; Dec 2024; Mar 2026), nist.gov/Commerce (Dec 10, 2024), esd.ny.gov (community commitments), OCIDA financial statements FY2025 (clayny.news), NSCSD presentation to OCIDA May 27, 2026 (onondaga.gov), Micron DEIS appendices (ongoved.com), DOL statement Dec 2024 (dol.gov).